



SPONSOR: Rep. Morrison & Sen. Lockman & Rep. Neal &
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Sens. Hansen, Cruce, Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 37

AN ACT TO AMEND TITLE 6 OF THE DELAWARE CODE RELATING TO PUBLIC ACCOMMODATIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 4502, Title 6 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 4502. Definitions.

For purposes of this chapter:

(18) “Person” includes individuals, corporations, companies, associations, firms, partnerships, societies, and joint-stock companies as provided under § 302 of Title 1. In addition, “person” includes sole proprietorships, limited liability companies, trusts, governmental bodies, and any other legal, commercial, or government entity.

(19) (20)a. “Place of public accommodation” means any all of the following:

1. An establishment which that caters to or offers goods, services, facilities, privileges, advantages, or accommodations to, or solicits patronage from, the general public, including state public.

2. All state agencies, local agencies.

3. Local government agencies, public libraries, and state-funded agencies agencies.

4. Public libraries. performing public functions.

5. A person that receives funding from this State to perform a public function.

6. A person performing a public function under the control and supervision of a state or local government agency.

7. This definition includes hotels Hotels and motels catering to the transient public, but it public.

b. “Place of public accommodation” does not apply to any of the following: the

1. The sale or rental of houses, housing units, apartments, rooming houses, or other dwellings, nor to tourist dwellings.

2. Tourist homes with less than 10 rental units catering to the transient public.

22 Section 2. If House Bill No. 36 has passed both chambers by July 1, 2025, and is enacted into law, Section 1 of
23 this Act takes effect 1 day after House Bill No. 36 takes effect.

24 Section 3. If House Bill No. 36 has not passed both chambers by July 1, 2025, Section 1 of this Act takes effect
25 immediately.

26 Section 4. If House Bill No. 36 has passed both chambers by July 1, 2025, but is not enacted into law, Section 1 of
27 this Act takes effect November 1, 2025.

SYNOPSIS

The Delaware Equal Accommodations Law, Chapter 45 of Title 6, prohibits discrimination in places of public accommodation on the basis of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, or national origin. This Act ensures that all government services, including those provided directly by government entities and those that are government-funded or supervised, are subject to the same non-discrimination requirements as private businesses by revising the definition of “place of public accommodation”. This Act also creates a definition of “person” that is consistent with similar definitions in the Code.

Sections 2 through 4 of this Act provide enactment instructions because House Bill No. 36 (153rd General Assembly) also revises § 4502(19) of Title 6.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.